HOUSE BILL NO. 5657

April 24, 2024, Introduced by Reps. Tsernoglou, Byrnes, Rheingans, Arbit, Hope, Hood, Wilson, Price, Conlin, Mentzer, MacDonell, Andrews, Brabec, Wegela, Skaggs, O'Neal, Morgan, Young, Haadsma, Steckloff and Aiyash and referred to the Committee on Natural Resources, Environment, Tourism and Outdoor Recreation.

A bill to require notices and warnings if certain products contain certain chemicals; to provide for the powers and duties of certain state governmental officers and entities; and to provide for civil sanctions and remedies.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

Sec. 1. This act may be cited as the "hazardous products act".

Sec. 3. As used in this act:

(a) "Currently unavoidable" means a use of PFAS that the department has determined by rule to be temporarily essential, if

all of the following requirements are met:

(*i*) There are no safer alternatives that are reasonably available to the PFAS used in the product.

(*ii*) The function of PFAS in the product is necessary for the product to work.

(*iii*) The PFAS is being used in a product that is critical for health, safety, or the function of society.

(b) "Department" means the department of environment, Great Lakes, and energy.

(c) "Intentionally added PFAS" means PFAS that a manufacturer intentionally added to and that has a functional or technical effect on a product, or a component thereof, or the manufacturing process. Intentionally added PFAS includes any PFAS that is a component or a breakdown product of an intentionally added chemical that has a functional or technical effect on the product, or a component thereof, or the manufacturing process.

(d) "Manufacturer" means a person that manufactures a product or whose brand name is affixed to the product that is sold or offered or distributed for sale in this state.

(e) "PFAS" means a perfluoroalkyl or polyfluoroalkyl substance that includes any member of the class of fluorinated organic chemicals containing at least 1 fully fluorinated carbon atom.

(f) "Product" means an item, or a component thereof, that is produced, distributed, sold, manufactured, or packaged for wholesale, personal, residential, commercial, retail, or industrial use.

Sec. 5. (1) Beginning January 1, 2027, a manufacturer of a product sold in this state that contains intentionally added PFAS shall submit to the department and any person that will sell, at

wholesale or retail, or offer or distribute for sale, the product a notice that contains all of the following information:

(a) A description of the product.

(b) Information regarding why PFAS was intentionally added to the product.

(c) The amount of PFAS used in the product.

(d) The name, address, and telephone number of the manufacturer and the manufacturer's authorized agent or representative.

(e) Any additional relevant information required by the department.

(2) The department may do 1 or more of the following regarding a notice under subsection (1):

(a) Authorize the omission of certain information if the department determines that substantially equivalent information is already publicly available.

(b) Require a manufacturer to update the notice.

(c) Reject the notice in writing for insufficient information. The rejection must indicate the information necessary to make the notice sufficient.

(3) The department shall review a notice submitted under subsection (1) and determine whether the use of PFAS is currently unavoidable. If the department determines that the use is currently unavoidable, it shall issue to the manufacturer a written waiver for the purposes of section 7.

(4) A manufacturer of a product for which federal law governs the presence of PFAS in the product is exempt from subsection (1).

Sec. 7. (1) Beginning January 1, 2027, a person shall not sell, or offer or distribute for sale, any of the following

products, if the product contains intentionally added PFAS, unless the department has issued a waiver for the product under section 5(3) and the person, if not the manufacturer, has obtained a copy of the waiver from the manufacturer:

(a) Apparel, which includes clothing items intended for regular wear or formal occasions, including, but not limited to, undergarments, shirts, pants, skirts, dresses, overalls, bodysuits, costumes, vests, dancewear, suits, saris, scarves, tops, leggings, school uniforms, leisurewear, athletic wear, sports uniforms, everyday swimwear, formal wear, onesies, bibs, diapers, footwear, outdoor apparel, and everyday uniforms for workwear. Apparel does not include personal protective equipment or items for use by the United States military.

(b) Carpets, rugs, or another similar fabric that is marketed or intended for use as a floor covering.

(c) Cleaning products, which are used primarily for janitorial, household, or institutional cleaning purposes, such as an air care, automotive, general cleaning, or a polish or floor maintenance product.

(d) Cookware, which are durable items that are used in homes and food establishments to prepare, dispense, or store food, and includes, but is not limited to, pots, pans, skillets, grills, baking sheets, baking molds, trays, bowls, and cooking utensils.

(e) Cosmetics, which include any item, or component part thereof, that is intended to be rubbed, poured, sprinkled, sprayed on, introduced into, or otherwise applied to the human body or any part of the human body for cleansing, beautifying, promoting attractiveness, or altering the appearance. Cosmetics do not include soap.

(f) Dental floss, which is a waxed or unwaxed thread used to remove food particles and plaque from between the teeth and under the gums.

(g) Fabric treatments or other similar substances that are applied to fabric to give the fabric 1 or more characteristics, such as stain or water resistance.

(h) Juvenile products, which include any product designed for use by infants and children under 12 years of age, such as a baby or toddler foam pillow, bassinet, bedside sleeper, booster seat, changing pad, child restraint system for use in motor vehicles and aircraft, co-sleeper, crib mattress, floor playmat, high chair, high chair pad, infant bouncer, infant carrier, infant seat, infant sleep positioner, infant swing, infant travel bed, infant walker, nap cot, nursing pad, nursing pillow, playmat, playpen, play yard, polyurethane foam mat, pad, or pillow, portable foam nap mat, portable infant sleeper, portable hook-on chair, soft-sided portable crib, stroller, and toddler mattress.

(i) Menstruation products, which include any disposable or reusable product used to collect menstruation and vaginal discharge, such as tampons, pads, sponges, menstruation underwear, discs, and menstrual cups.

(j) Textile furnishings, which include any type of textile customarily used in households and businesses, such as draperies, floor coverings, furnishings, bedding, towels, and tablecloths.

(k) Ski wax or other similar lubricant that is applied to the bottom of snow runners.

(*l*) Upholstered furniture, which includes any article of furniture that is designed to be used for sitting, resting, or reclining and that is wholly or partly stuffed or filled with any

filling material.

(2) Beginning January 1, 2032, a person shall not sell, or offer or distribute for sale, any product that contains intentionally added PFAS, unless the department has issued a waiver for the product under section 5(3) and the person, if not the manufacturer, has obtained a copy of the waiver from the manufacturer.

(3) This section does not apply to the sale or resale of used products.

Sec. 9. (1) Except as otherwise provided in subsection (3), beginning January 1, 2027, a person, local government, or state agency shall not discharge or otherwise use class A or class B firefighting foam that contains intentionally added PFAS.

(2) Except as otherwise provided in subsection (3), beginning January 1, 2027, a manufacturer of class A or class B firefighting foam shall not manufacture, sell, offer for sale, or distribute for sale or use in this state class A or class B firefighting foam that contains intentionally added PFAS.

(3) The restrictions under subsections (1) and (2) do not apply to the manufacture, sale, distribution, or use of class B firefighting foam that contains intentionally added PFAS that is subject to regulation under 14 CFR 139.317 or another federal law. If a federal law that requires class B firefighting foam to contain intentionally added PFAS is revoked on or after January 1, 2024, the class B firefighting foam subject to the federal law is no longer exempt under this subsection beginning 1 year after the effective date of revocation. If a federal law that requires class B firefighting foam to contain intentionally added PFAS is amended on or after January 1, 2024 to allow the use of alternative

firefighting agents, the restrictions under subsections (1) and (2) apply.

(4) Beginning January 1, 2027, a person that sells firefighter personal protective equipment in this state shall provide a written notice to the purchaser at the time of sale if the firefighter personal protective equipment contains intentionally added PFAS. The written notice must include a statement that the firefighter personal protective equipment contains PFAS and the reason that PFAS were added.

(5) As used in this section:

(a) "Class A firefighting foam" means foam designed for class A materials fires, such as wood, paper, brush, and vegetation, and is widely used by many fire departments for structural firefighting using compressed air foam systems.

(b) "Class B firefighting foam" means foam designed for class B materials fires, such as gasoline, oil, and jet fuel, and is widely used to extinguish hydrocarbon flammable liquid fires.

(c) "Firefighting personal protective equipment" means any clothing designed, intended, or marketed to be worn by firefighting personnel in the performance of fire and rescue activities and includes jackets, pants, shoes, gloves, helmets, and respiratory equipment.

Sec. 11. A person that violates this act is subject to penalties as follows:

(a) For a first offense, guilty of a misdemeanor punishable by imprisonment for not more than 93 days, a fine of not more than $1,000.00, or both.

(b) For a second offense, guilty of a misdemeanor punishable by imprisonment for not more than 93 days, a fine of not more than

$1,500.00, or both.

(c) For a third or subsequent offense, guilty of a felony. The court shall sentence the person to imprisonment for not more than 2 years and impose a fine of not more than $2,000.00.

Sec. 13. The department shall promulgate rules to implement this act under the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328.